

Attorney fees

Plaintiff seeks \$45,000 in attorney's fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

The requested representative payment of \$2,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined "risk" by doing so. Considering all the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**, except for attorney's fees, which is scheduled for hearing on November 25, 2026 at 9:00 a.m. No appearance is required at the June 17, 2026 hearing.
2. Plaintiff's Counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel is to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

9. 9:00 AM CASE NUMBER: C24-03411
CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS
FILED BY: ELIAHU, AVI
TENTATIVE RULING:

Plaintiff Julie Romanowski brings this personal injury action seeking damages for injuries suffered when Defendant Aaron Eliahu collided with her while skiing at Northstar California Ski Resort. Defendants Aaron Eliahu, Avi Eliahu and Patricia Eliahu now move for summary judgment, arguing that Plaintiff's case is barred by the primary assumption of risk doctrine. For the reasons stated below, the motion is **granted**.

Facts

This action arises from a collision between skiers that occurred on December 24, 2022, on the Drifter

run at Northstar California Ski Resort in Truckee, Placer County, in which Defendant Aaron Eliahu collided with Plaintiff Julie Romanowski, causing her significant injuries. References below to "UMF" are to Defendants' undisputed material facts, and to PMF" are to Plaintiff's additional material facts, as set forth in the separate statements.

Drifter is a groomed, blue square, intermediate-level run, and both Drifter and the ungroomed terrain adjacent to it lie within Northstar's boundaries. (UMF Nos. 1-3.) Drifter had been groomed that morning, no new snow had fallen that day, and conditions were clear and sunny with good visibility. (UMF Nos. 4-6.) Plaintiff, then 55 years old, was skiing with her husband; she had skied at Northstar for sixteen or seventeen years and testified she was comfortable on the resort's most difficult runs. (UMF Nos. 7-10.) Defendant Aaron Eliahu, then 15, was skiing with his family. He had never taken a formal ski lesson, and categorized himself as an intermediate skier on a scale of beginner, intermediate, advanced, and expert. (UMF Nos. 11-15.)

Plaintiff was skiing down Drifter and, when she was approximately halfway down, decided to ski to the right edge of the run, looking downslope, and come to a stop. (PMF Nos. 1-2.) At that moment the run was empty of other skiers. (PMF No. 3.) She stopped off the edge of the run on ungroomed snow, with the groomed portion of Drifter to her left and ungroomed conditions to her right (PMF No. 4), planted her ski poles and positioned her skis to the left toward the groomed portion of the run so she could see skiers coming from above. (PMF No. 6.) She looked up and saw no one to her right or to her left. (UMF No. 22.) The spot where she stopped was not near any identifiable landmark, had no signage, and was not close to any trees. (UMF Nos. 19-21.) She was reaching for a tissue to blow her nose when the collision occurred. (UMF No. 18.)

Defendant was also skiing on ungroomed snow in the area where the collision occurred. (UMF No. 17; PMF No. 7.) The only ungroomed snow in and around the collision area that day was in the tree lines along the sides of Drifter (PMF No. 8), which is approximately 25 meters wide at its narrowest point. (PMF No. 9.) Defendant was traveling at approximately 25 miles per hour, making slalom turns roughly ten feet wide. (UMF No. 29; PMF No. 10.) He first saw Plaintiff when she was about 50 feet below him on the mountain, and he estimates that five to ten seconds passed between that moment and the collision. (UMF Nos. 27-28.) He continued making slalom turns as he closed the distance, and at approximately 20 feet realized he was not going to clear her and attempted to turn left to avoid the collision. (PMF Nos. 10-11.)

Plaintiff testified that, while she was stopped, she heard someone yell from above and to her right, "I can't stop! Sorry," and was then struck on her right side. (UMF Nos. 23-24.) She estimates that the time between first seeing Defendant and the collision was a "nanosecond," insufficient for her to react. (UMF Nos. 25-26.) It is undisputed that Plaintiff made no erratic movements contributing to the collision, that Defendant testified she was unaware of his presence beforehand, that there was nothing she could have done to avoid him, and that no equipment malfunction or mechanical failure caused the collision. (UMF Nos. 30-32, 34.) It is further undisputed that Defendant was the uphill skier and Plaintiff the downhill skier with the right of way, and that Defendant was unable to overtake her without making contact. (UMF Nos. 35-37.)

Two facts in Defendant's separate statement are disputed. Defendant states that he testified he was unable to stop and avoid Plaintiff (UMF No. 33), and that the speed at which he was traveling and the distance remaining between them were the reasons he was unable to avoid the collision. (UMF No.

38.) Plaintiff does not dispute that this testimony was given, but disputes both statements as incomplete, on the ground that in the same testimony Defendant also stated that he was unable to avoid the collision because he lacked “sufficient control” and was “not in control” (PMF No. 12), a characterization Plaintiff contends Defendant's statement of UMF Nos. 33 and 38 omits.

The collision shattered Plaintiff's pelvis in fifteen locations, caused additional injuries, and rendered her unconscious for several minutes. (PMF No. 13.) She was life-flighted to Renown Regional Medical Center in Reno as a Trauma Red patient with life-threatening injuries. (PMF No. 14.) Her pelvis fracture was of a type typically seen in T-bone motor vehicle collisions, and her treating surgeon testified that injuries of that magnitude, absent a vehicle collision, reflect substantial force, such that Defendant “would have to be going very quickly.” (PMF Nos. 15-16.) When ski patrol arrived at the scene, Plaintiff was found on the groomed portion of Drifter. (UMF No. 42) Neither party is aware of any identifiable witness to the collision other than themselves, and Plaintiff does not contend that Defendant collided with her intentionally. (UMF No. 43.)

The record establishes the content of the skier responsibility codes applicable at Northstar. Northstar maintains a Skier Responsibility Code (PMF No. 19) that promulgates ten tenets of safe skiing (PMF No. 20) and is posted on Northstar's “Safety on the Mountain” webpage and at locations throughout the resort (PMF No. 21) to serve as a foundation for safe skiing. (PMF No. 22.) That code is identical to the code adopted by the National Ski Patrol (PMF No. 23), whose website describes the code as the foundation of safe skiing and snowboarding in the United States (PMF No. 24) and states that its rules are not mere suggestions but the standard for safe behavior on the slopes that helps reduce collisions. (PMF No. 25.) The lead Northstar patroller who responded to this collision agreed that the code is the standard for safe behavior on the slopes. (PMF No. 26.) The first two tenets of both codes, relied upon by Plaintiff here, are: (1) Always stay in control. You must be able to stop or avoid people or objects. (2) People ahead or downhill of you have the right-of-way. You must avoid them. (PMF No. 27.) Northstar's patrollers testified that each is a foundation for safe skiing. (PMF No. 28.) Substantially similar duties are codified in Placer County Code sections 9.28.050 and 9.28.060 (PMF Nos. 29-30), to which Northstar's website specifically links. (PMF No. 31.)

Although Defendant was not aware of either the Northstar Code or the Placer County Code prior accident in this case (UMF No. 39), he testified that he agrees these are responsibilities held by skiers (PMF No. 32), that he did not grant Plaintiff the right of way (PMF No. 33), and that he overtook her while he was the uphill skier. (PMF No. 34.)

The December 17, 2024 complaint contains two causes of action, both styled as general negligence. The first is against Aaron Eliahu arising from the collision, and the second is against Aaron's parents, Avi Eliahu and Patricia Eliahu, for negligent supervision.

On March 26, 2025, Defendants filed this motion for summary judgment. They claim the doctrine of primary assumption of risk excused them from liability for negligence and there were no facts establishing recklessness. Plaintiff opposes the motion, claiming primary assumption of risk does not apply because Aaron Eliahu was reckless in his skiing.

Discussion

Summary Judgment Standard

A trial court will grant summary judgment where there is no triable issue of material fact and the moving party is entitled to judgment as a matter of law. A defendant moving for summary judgment must prove the action has no merit. He does this by showing one or more elements of plaintiff's cause of action cannot be established or that he has a complete defense to the cause of action. At this point, plaintiff then bears the burden of showing a triable issue of material fact exists as to that cause of action or defense. (Code Civ. Proc., § 437c, subds. (c), (o)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843, 849–850.)

In determining whether there is a triable issue of material fact, the court considers all the evidence set forth by the parties except that to which objections have been made and properly sustained. (Code Civ. Proc., § 437c, subd. (c); *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 334.) The court accepts as true the facts supported by plaintiff's evidence and the reasonable inferences therefrom (*Sada v. Robert F. Kennedy Medical Center* (1997) 56 Cal.App.4th 138, 148), resolving evidentiary doubts or ambiguities in plaintiff's favor. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

Evidentiary Matters

Judicial notice

Defendants request judicial notice of Plaintiff's complaint filed December 17, 2024, pursuant to Evidence Code section 452, subdivision (d). The request is **granted**.

Plaintiff requests judicial notice of Article 9.28 of the Code of Ordinances for the County of Placer pursuant to Evidence Code section 452, subdivisions (b) and (h). The request is **granted**. The Court takes judicial notice of the existence and text of the ordinance. The Court does not take judicial notice of any particular interpretation of the ordinance.

Evidentiary objections

Defendants object to portions of the depositions of Wiebe (Whittington Dec., Exhibit D, 58:17-59:22, 60:10-24, 62:2-15, 62:25-63:8) and Abbott (Whittington Dec., Exhibit E, 29:8-20, 30:2-23, 30:25-31:12, 37:22-39:4, 39:16-25, 40:21-41:1) on grounds of improper opinion testimony, lack of personal knowledge, and relevance. The objections are **sustained** to the extent the challenged testimony purports to offer legal conclusions about the purpose or effect of the skier responsibility codes, or to characterize those codes as establishing a standard of care.

Primary Assumption of Risk

The primary assumption of risk doctrine is an exception to the general rule that a person owes a duty to exercise ordinary care to avoid injuring others. (Civ. Code, § 1714, subd. (a); *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1197 (*Lackner*).) Under the doctrine, coparticipants in sporting activities generally do not have a duty to protect each other from the risks inherent in the sport, or to eliminate risk from the sport, but owe a duty of care to avoid increasing the risk of harm beyond that

which is inherent in the sport. (*Id.* at p. 1198.) The duty owed by the participant is to avoid “intentionally injur[ing] another [participant] or engag[ing] in conduct that is so reckless as to be totally outside the range of the ordinary activity involved in the sport.” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 320 (*Knight*)). Whether primary assumption of risk applies “turns on whether, in light of the nature of the sporting activity in which defendant and plaintiff were engaged, defendant’s conduct breached a legal duty of care to plaintiff.” (*Id.* at p. 315.) The test is objective and depends on the nature of the sport and the defendant’s role in or relationship to the sport. (*Cheong v. Antablin* (1997) 16 Cal.4th 1063, 1068 (*Cheong*); *Lackner, supra*, 135 Cal.App.4th at p. 1198.) When applicable, the doctrine operates as a complete bar to recovery, and is based on the policy of avoiding chilling vigorous participation in the sport, or fundamentally altering the nature of the sport. (*Knight, supra*, 3 Cal.4th at pp. 314-315; *Lackner, supra*, 135 Cal.App.4th at p. 1198.)

While not all conduct is excused under the doctrine, a coparticipant ordinarily bears no liability for an injury resulting from conduct that is merely careless or negligent. (*Lackner, supra*, 135 Cal.App.4th at pp. 1198, 1199; *Ford v. Gouin* (1992) 3 Cal.4th 339, 342.) When the facts are not disputed, application of the doctrine of primary assumption of risk is a legal question to be decided by the court. (*Childs v. County of Santa Barbara* (2004) 115 Cal.App.4th 64, 69.)

A defendant seeking summary judgment based on the doctrine must establish that defendant did not owe a legal duty to prevent the harm of which plaintiff complains. (*Capri v. L.A. Fitness International, LLC* (2006) 136 Cal.App.4th 1078, 1087.) Accordingly, Eliahu is liable to Romanowski only if he intentionally injured her or engaged in reckless conduct outside the range of ordinary activity in skiing, such that prohibiting the conduct would not deter vigorous participation or alter the nature of the sport. (*Lackner, supra*, 135 Cal.App.4th at p. 1199.)

A. Inherent Risks of Skiing

“The risks inherent in snow skiing have been well catalogued and recognized by the courts. Those risks include injuries from variations in terrain, surface or subsurface snow or ice conditions, moguls, bare spots, rocks, trees, and other forms of natural growth or debris. They also include *collisions with other skiers*, ski lift towers, and other properly marked or plainly visible objects and equipment.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1202, emphasis added.)

Recognizing the nature of skiing lends the sport to being an activity to which primary assumption of risk applies, Romanowski does not dispute that she and Eliahu were coparticipants in the sport, or that collisions between skiers are among its inherent risks. She contends instead that primary assumption of risk does not apply because disputed issues of fact suggest Eliahu’s conduct was reckless, and that his conduct thereby increased the risks of skiing beyond those inherent to the sport. She further contends that the Northstar Skier Responsibility Code and the Placer County Code inform the range of activity ordinarily involved in skiing, and that Eliahu’s violation of those provisions supports her recklessness argument. The Court considers each argument below.

B. Reckless Behavior

Plaintiff claims she submitted sufficient facts to create a triable issue on whether Eliahu’s skiing was reckless and thus outside the shield of primary assumption of risk. Defendants argue there is no such triable issue, and the Court agrees.

“‘Recklessness’ refers to a subjective state of culpability greater than simple negligence, which has been described as a ‘deliberate disregard’ of the ‘high degree of probability’ that an injury will occur. [Citations.] Recklessness, unlike negligence, involves more than ‘inadvertence, incompetence, unskillfulness, or a failure to take precautions’ but rather rises to the level of a ‘conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.’ (Rest.2d Torts, § 500, com. (g), p. 590.)” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32, fn. omitted.)

To establish Eliahu's conduct was reckless and not shielded by primary assumption of risk, plaintiff must show the conduct was "so reckless as to be totally outside the range of the ordinary activity involved in the sport." (*Knight, supra*, 3 Cal.4th at p. 320, fn. omitted.) “[C]onduct is totally outside the range of ordinary activity involved in the sport (and thus any risks resulting from that conduct are not inherent to the sport) if the prohibition of that conduct would neither deter vigorous participation in the sport nor otherwise fundamentally alter the nature of the sport.” [Citations.]” (*Distefano v. Forester* (2001) 85 Cal.App.4th 1249, 1261; *Freeman v. Hale* (1994) 30 Cal.App.4th 1388, 1394-1395.)

Thus, in *Towns v. Davidson* (2007) 147 Cal.App.4th 461, the court addressed whether skiing too fast or out of control raises a triable issue of recklessness. There, the defendant was skiing down a slope at 25 to 30 miles per hour when he turned to his right without looking, did not see the plaintiff skiing down the same slope until the last second, and collided with her, causing serious injuries. The court held that this conduct was not reckless, explaining that to conclude otherwise would call into question vigorous skiing and fundamentally alter the nature of the sport. (*Id.* at pp. 471, 473.)

Romanowski testified that she did not see Eliahu before the collision. While she was stopped, she heard him yell, “I can't stop! Sorry,” from above and to her right, and was struck on her right side within what she described as a “nanosecond” of first becoming aware of him. (UMF Nos. 23-26.) Eliahu testified that he first saw Romanowski when she was approximately 50 feet below him on the mountain, that five to ten seconds passed before the collision, and that he was traveling at approximately 25 miles per hour making slalom turns approximately ten feet wide. (UMF Nos. 27-29.) He continued making slalom turns as he closed the distance, and at approximately 20 feet realized he was not going to clear her and attempted to turn left to avoid the collision. (PMF Nos. 10-11.) He testified that he was unable to stop or avoid the collision because he lacked sufficient control. (PMF No. 12.) Neither party identifies any percipient witness to the collision itself; the ski patrollers who responded to the scene arrived afterward and did not witness it. (UMF Nos. 40-42.)

The material facts concerning Eliahu's conduct are not in dispute. Eliahu was skiing on ungroomed snow in the vicinity of Drifter, traveling at approximately 25 miles per hour and making slalom turns approximately ten feet wide. (UMF Nos. 17, 29; PMF Nos. 7, 10.) He saw Romanowski from 50 feet away, continued his slalom turns as he closed the distance, and at 20 feet attempted to turn left to avoid her but was unable to stop or avoid the collision. (UMF Nos. 27-28; PMF Nos. 11-12.) Romanowski does not dispute that Eliahu gave this testimony; she contends only that his statement of these facts should also reflect his testimony that he lacked sufficient control. The Court need not resolve whether this renders UMF Nos. 33 and 38 disputed, because an admission of loss of control does not itself support a finding of recklessness.

These facts do not establish conduct totally outside the range of ordinary activity involved in the sport of skiing. Eliahu was skiing at speed, making turns on terrain adjacent to Drifter. He saw Romanowski,

tried to get around her, and could not. There is no evidence he consciously chose to ski in a manner that introduced risks beyond those inherent in the sport. (*Cheong, supra*, 16 Cal.4th at pp. 1069-1072.) Romanowski's reliance on *Lackner* and *Mammoth Mountain Ski Area v. Graham* (2006) 135 Cal.App.4th 1367 (*Graham*) does not change this conclusion.

Lackner recognized that "[i]nadvertent collisions with coparticipants who carelessly cross paths" are an inherent risk of skiing. (*Lackner, supra*, 135 Cal.App.4th at p. 1199.) However, *Lackner* held there was a triable issue of fact as to whether the collision was inadvertent and unavoidable. (*Id.* at p. 1201.) The court stated that because he was an expert snowboarder, he had the skill to avoid people standing in the area, and concluded that he was not paying attention to his surroundings. (*Ibid.*) The court found a triable issue as to whether the defendant had been reckless because of the cumulative evidence that he was speeding, he was on a flat rest area, he was not looking where he was going, and he was unfamiliar with the area. (*Ibid.*)

None of that is true here. Eliahu did not collide with someone in a designated rest area. He was not racing anyone. And he was not looking away from the slope. He saw Romanowski from 50 feet away, continued skiing as he closed the distance, and at 20 feet realized he was closing on her and tried to turn left to avoid her. Looking toward the person you are about to strike is very different from looking back at teammates.

In *Graham*, the defendant was engaged in a snowball fight with his brother, "looking at [his brother] and preparing to throw a snowball," when he struck a ski instructor standing still at the edge of the run. The court held a jury could find the collision "neither inadvertent nor unavoidable" because the defendant "was not watching where he was going." (*Graham, supra*, 135 Cal.App.4th at pp. 1369-1370, 1373.) That is, neither defendant was paying attention to skiing at the moment of collision. One was racing teammates, the other was throwing snowballs. They happened to be on skis or a snowboard while doing it.

Romanowski argues that defendant made a "conscious decision[] regarding [his] speed and line of travel," and that this places Eliahu's conduct in the same category as the defendants in *Lackner* and *Graham*. (Opp. 17:25-26.) That is true in every case that a skier chooses a speed and a line, including the ones where primary assumption of risk has barred recovery. The defendants in *Lackner* and *Graham* were not paying attention to where they were going, a differentiating feature of those cases. Eliahu's attention, by contrast, was on Romanowski the entire time. He saw her from 50 feet away, continued skiing as he closed the distance, and at 20 feet tried to turn away but could not stop in time. He was not looking back at teammates or throwing snowballs. At worst, this is the kind of accidentally careless behavior arising from a participant's normal energetic conduct that is not actionable. (*Knight, supra*, 3 Cal.4th at p. 318.)

Romanowski points to the greater distance and additional time before the collision, as compared to *Lackner*, as making this case "more egregious." (Opp. 16:25-27.) The Court disagrees. Romanowski's list of things Eliahu could have done instead, widen his turn, stop, or intentionally fall, does not show that failing to do any of them was a choice. Looking in a particular direction requires no skill and is available to any skier, which is why that can fairly be called a choice. Executing a wider turn, an emergency stop, or a controlled fall at 25 miles per hour depend on the skier's skill and the time he had. That Eliahu, an intermediate skier (UMF Nos. 11-15), did not manage any of these in the few seconds before the crash is evidence of misjudgment or a limit of his ability, not that he consciously

decided against attempting them. The “intentional fall” option above illustrates the point. If a skier's failure to deliberately fall rather than risk a collision were itself evidence of recklessness, the standard would require every skier who perceives a collision to choose self-inflicted injury as the safer course. That would deter vigorous skiing far more than the conduct it targets.

Nor does Romanowski's characterization of herself as a stationary bystander change the analysis. *Graham* held that “participation in snowboarding or skiing does not carry with it the inherent risk of being struck by another snowboarder or skier engaged in a snowball fight.” (*Graham, supra*, 135 Cal.App.4th at pp. 1373-1374.) It was the snowball fight that fell outside the inherent risk, not the fact that the instructor happened to be standing still. A stopped skier is not automatically outside the inherent risk of collision. *Lackner's* own list of inherent risks includes collisions with “properly marked or plainly visible objects,” which are by and large stationary. (*Lackner, supra*, 135 Cal.App.4th at p. 1202.)

A finding of recklessness on these facts would call into question vigorous skiing and fundamentally alter the sport. He was skiing fast and making turns on a run, saw another skier, and could not stop in time. Calling that reckless would leave little room for skiing at all.

C. The Skier Responsibility Codes

Romanowski contends that the Northstar Skier Responsibility Code and the Placer County Code present genuine issues of material fact as to what constitutes the range of ordinary activity involved in skiing, and that Eliahu's violation of those codes supports her recklessness argument.

Romanowski makes three arguments about the codes. She argues that Eliahu violated them by failing to stay in control and failing to yield the right of way, and that his own deposition testimony confirms it. She argues that prohibiting his conduct would not chill vigorous skiing because the codes already prohibit it. And she argues that even if the codes do not create independent liability, they inform what ordinary skiing looks like and add support to her recklessness argument.

Defendants point out that the Placer County Code itself states that skiers assume the inherent risks of skiing, which the code defines to include collision with other skiers and a skier's failure to ski within his own ability. (Placer County Code, § 9.28.020.) Section 9.28.030 extends the assumption of risk to anyone within the ski area boundaries, including persons there for the purpose of watching skiing activity.

Romanowski does not argue that the codes modify the common law rules of primary assumption of risk or impose an independent basis for tort liability, as was argued and rejected in *Cheong, supra*. Nor does she argue that a code violation automatically means recklessness.

Cheong considered the same Placer County ordinance at issue here in the context of a skier-on-skier collision and held that it did not alter the primary assumption of risk analysis. (*Cheong, supra*, 16 Cal.4th at pp. 1069-1072.) The Court is not persuaded that Eliahu's violation of the Placer County Skier Responsibility Code shows that his conduct was totally outside the range of ordinary activity in skiing.

The code lists several duties of skiers, one of which is to ski in a safe and reasonable manner, under sufficient control to be able to stop or avoid other skiers or objects. (Placer County Code, § 9.28.050,

subd. A.) The California Supreme Court has held that those duties do not govern tort liability between skiers. (*Cheong, supra*, 16 Cal.4th at p. 1069.) The code itself provides that skiers assume and accept the inherent risks of skiing, which it defines to include collision with other skiers and a skier's failure to ski within his own ability. (Placer County Code, §§ 9.28.020, 9.28.030.) The defendant in *Cheong* also violated the Placer Code by skiing faster than was safe and losing control, yet the Court held the code created no liability between the skiers. If the Placer County Code does not alter the primary assumption of risk analysis, the Northstar Code, a private resort policy, cannot either. (See also, *Avila, supra*, 38 Cal.4th at 165 [violation of a rule of the game does not itself give rise to tort liability between coparticipants].)

Campbell v. Derylo (1999) 75 Cal.App.4th 823, cited as support for using code violations to show an inherent risk has been increased, does not persuade the Court that this motion should be denied. The *Campbell* court limited its holding to the defendant's failure to use a snowboard retention strap, a specific equipment requirement with no parallel here, and treated the remaining alleged misconduct as ordinary negligence barred by primary assumption of risk. *Campbell* does not support that code violations generally transform otherwise ordinary skiing into recklessness.

Disposition

Based on the foregoing, summary judgment is **granted**.

As to the first cause of action, the undisputed facts establish that Romanowski's injuries arose from risks inherent in recreational skiing and that Eliahu's conduct was not so reckless as to fall outside the range of ordinary activity involved in the sport. Primary assumption of risk bars therefore bars her claim against Aaron Eliahu.

As to the second cause of action for negligent supervision against Avi and Patricia Eliahu, the moving papers do not address it separately, and neither party argues it survives independently of the first. A negligent supervision claim requires an underlying tortious act by the person supervised. Because Aaron owed no duty to Romanowski, there is no tort for his parents to have failed to prevent. The second cause of action is therefore disposed of on the same grounds.

10. 9:00 AM CASE NUMBER: C24-03522
CASE NAME: KAMURE KIZART VS. PUBLIC HEALTH FOUNDATION ENTERPRISES, INC.
***HEARING ON MOTION IN RE: COURT APPROVAL OF PAGA SETTLEMENT**
FILED BY: KIZART, KAMURE

TENTATIVE RULING:

Summary

Plaintiff Kamure Kizart's Motion for Approval of the PAGA Settlement Agreement is **granted** as set forth herein. No appearance is required at the June 17, 2026 hearing.

Background

Plaintiff Kamure Kizart ("Plaintiff") and Defendant Public Health Foundation Enterprises, Inc. ("Defendant") have reached a settlement under the Labor Code Private Attorneys General Act of 2004 (PAGA). The total settlement amount is \$1,000,000. The settlement covers approximately 2,600